STANDARD OPERATING PROCEDURE	G-6100

	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 12/04/06	DATE REVISED **01/12/23**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		

CHAPTER TITLE GENERAL	RESOURCES N.R.S. 28-1406 THRU 28-1416, 28-109 AND 13-1801
SUBJECT USE OF FORCE/FORCE CONTINUUM	CROSS REFERENCE P-3210 PATROL SHOTGUN G-6110 USE OF FORCE REPORTING REQUIREMENTS G-6120 USE OF FORCE RESULTING IN DEATH OR SERIOUS BODILY INJURY G-6300 AUTHORIZED RESTRAINTS

I. Purpose:

The purpose of this policy is to establish the guidelines for the use of force to control resistance.

II. Policy:

Sarpy County Sheriff's employees shall use force only when absolutely necessary, when justified by law and when other reasonable methods of resolution are ineffective or would be clearly inappropriate. Employees shall only use the amount of force which is reasonable and necessary under the circumstance as they know them to be. Application of force shall be discontinued as soon as the circumstances justifying its use cease.

III. Disclaimer:

This policy is for Sheriff's Office use only and does not apply in any criminal or civil proceeding. The Sheriff's Office policy should not be construed as a creation of a higher legal standard of safety or care in an evidentiary sense with respect to third party claims. Violations of this policy shall only form the basis of Sheriff's Office administrative sanctions. Violations of laws will form the basis of civil and/or criminal sanctions in a judicial setting.

IV. Definitions:

A. Deadly Force: Forced used by a person who knows, or should know, creates a substantial risk of causing death or serious bodily harm. NRS 28-1406.

B. **De-escalation Techniques:** The strategic slowing down of an incident in a manner that allows deputies more time, distance, space, and tactical flexibility during dynamic situations.

C. **Objectively Reasonable:** Term created by the Courts as the standard by which law enforcement officers' actions are judged. Graham v Conner, 490 US 386 (1989) The "reasonableness" of force must be judged from the perspective of a reasonable officer on the scene, rather than with the 20/20 vision of hindsight, and must allow for the fact that police officers are often forced to make split second decisions.

D. **Serious Bodily Injury:** Bodily injury which involves a substantial risk of death, or which involves a substantial risk of serious permanent disfigurement, or protracted loss or impairment of the function of any part or organ of the body. NRS 28-109.

E. **Public Safety Associates** – Representatives from other organizations within the broader criminal justice system, which may include members of task forces with which the agency works, members of other law enforcement agencies with shared jurisdiction, agency volunteers, and others.

V. Procedure:

A. **Use of Force Continuum:** The Sheriff's Office has adopted a resistance control continuum as a model for the use of force. The levels of control are based on levels of resistance. It is important to understand that employees do not need to escalate through the levels of control in a step-by-step progression; employees shall utilize that force deemed "objectively reasonable" to control the resistance based on the totality of the circumstances.

1. Levels of Resistance

a) Psychological Intimidation: Nonverbal clues indicating a subject's attitude including but not limited to a blank stare, clenching of fists, tightening of jaw muscles, etc.

b) Verbal Noncompliance: Any verbal response indicating a subject's unwillingness to obey commands of detainment, arrest, or to stop unlawful or dangerous behavior.

c) Passive Resistance: Any type of resistance where the subject does not attempt to defeat the officer's attempt to touch or control the subject, but still will not voluntarily comply with verbal and physical attempts of control (e.g., dead weight, does not react to verbal commands, sit-in protest, etc.).

d) Defensive Resistance: Any action by a subject that attempts to prevent an employee from gaining control of the subject (e.g., pulling/pushing away, resistance to handcuffing, etc.) but does not include attacking the employee.

e) Active Aggression: Physical actions/assaults against the employee or another person with less than deadly force (e.g., advancing, challenging, punching, kicking, grabbing, wrestling, etc.).

f) Deadly Force Assault: Force used against an employee or another person that may result in serious bodily harm or death. This does not require the use of a weapon.

2. Levels of Control:

a) Officer Presence: Identification of an employee's authority, by his or her uniformed presence or the verbal identification of being a deputy.

b) Verbal Direction: Lawful orders issued by an employee.

c) Soft Empty Hand Control: Strength techniques, joint locks, and pressure points. Generally, these techniques are used to control Passive or Defensive Resistance.

d) Hard Empty Hand Control: Hand strikes, kicks, and the Shoulder Pin Restraint. Generally used to control Active Aggression but may be used to control Defensive Resistance when lower forms of control have failed, or the employee believes they would not be effective.

e) Intermediate Weapons: Any weapon to control resistance or an assault that is not part of the human body and which is not intended to cause death or serious bodily injury including, but not limited to: Aerosol Subject Restraints, impact weapons (batons, flashlights, etc.), Tasers, Pepperball Systems, Electronic Subject Restraints, Less Lethal Shotgun, etc. Generally, intermediate weapons are justified to control Active Aggression or when lower forms of empty hand control have failed, or the employee believes they would not be effective.

f) Deadly Force: Force which the employee uses with the purpose of causing or which he or she knows to create a substantial risk of causing death or serious bodily harm (N.R.S. 28-1406). This includes, but is not limited to the use of firearms, ramming vehicles, strikes with an impact weapon to the head, etc.

B. **De-escalation Techniques:** When safe and practicable, under the totality of the circumstances, deputies shall attempt to use de-escalation techniques.

C. **Verbal Warnings:** When feasible, deputies shall, prior to the use of force, make reasonable efforts to identify themselves as law enforcement and to warn that force may be used, unless the deputy has objectively reasonable grounds to believe that the person is aware of those facts.

D. **Use of Force:**

1. The use of force continuum is a guide to what type and degree of force to use and is founded on the principles that employees should:

a) Respond to the resistance with a level of control that is sufficient to overcome the resistance but is reasonable and necessary under the conditions.

b) Select a type and degree of force in consideration of the factors and circumstances including, but not limited to:

(1) Employee/subject size and gender.
(2) Environmental conditions.
(3) Reaction time and distance.
(4) Subject's access to weapons.
(5) Knowledge of the subject (e.g., history of prior violence).
(6) Type of crime committed or attempted.
(7) Subject is under the influence of alcohol or drugs.
(8) Number of employees and subjects.

c) Escalate the level of force if the present level is ineffective, or if the subject escalates resistance.

d) De-escalate the level of force as the subject is brought under control.

E. **Prohibition on Neck Restraints and Choke Holds:** Neck restraints and choke holds are prohibited unless circumstances justify the use of deadly force. Use of Force/Defensive Tactics instructors are prohibited from teaching the use of neck restraints and choke holds.

F. **Duty to Intervene:** All employees are required to intervene, within the scope of their authority and training, and notify their supervisor if they observe another employee or public safety associate engage in any unreasonable use of force or if they become aware of any substantive issues that may involve a violation of policy, or State or federal law.

An employee shall intervene immediately, physically or verbally, if they observe a clearly unreasonable application of force or other inappropriate due process procedure. Other circumstances may be best handled through reporting the matter to the appropriate supervisor in a timely manner. The intent of this policy is to reinforce the professional performance and behavior expected of all employees and to prevent the public and the Sheriff's Office from being negatively impacted by inappropriate employee actions. The employee who is the subject of the intervention should respond appropriately.

G. Medical Aid: Once the scene is safe and as soon as practicable, deputies shall:

1. Immediately request medical aid for anyone who is injured or anyone who requests medical care.

2. Provide appropriate medical care consistent with his or her training (e.g., first aid, etc.).

H. Treatment After Use of Force:

1. Secure the subject using authorized restraints (see G-6300 Authorized Restraints) and place him or her in an upright position.

2. Observe the subject to determine their state of consciousness and physical condition. Seek medical treatment if necessary. Incidents that may heighten the need for medical treatment are:

a) Blows to the abdomen.
b) Violent resistance.
c) Use of Aerosol Subject Restraint or Pepperball system.
d) Difficulty breathing.
e) Subject complaint of pain.
f) Suspect under influence of alcohol or drugs.
g) Use of Taser.
h) Use of Electronic Restraint Device.
i) Use of Less Lethal Shotgun

3. Once the subject is secured, assist in decontamination if he or she has had contact with Aerosol Subject Restraint or Pepperball.

4. If necessary, obtain medical treatment for the subject prior to transport to the jail. Should a subject be transported by rescue squad, a deputy who was not involved in the incident, if feasible, shall accompany the subject. Upon discharge from a medical facility, all medical paperwork shall be provided to the jail staff.

5. If the subject is admitted to the hospital, the shift supervisor shall notify the on-duty watch commander or the ADC.

6. The on-duty watch commander, or the ADC shall determine if the subject may be issued a citation and released or needs a 24-hour guard.

7. If a 24-hour guard is required, the shift supervisor shall ensure a deputy is posted in the subject's room.

I. Use of Deadly Force:

1. The use of deadly force by deputies shall be restricted to the deadly force conditions listed below and under section 28-1412 of the Nebraska Revised Statutes.

a) To protect themselves or others from what they believe to be an immediate threat of death or serious bodily harm.

b) During an arrest only when the following elements are present:

(1) A felony has been committed by the person to be arrested.

(2) The crime for which the arrest is made involved conduct involving the use or threatened use of deadly force.

(3) There is substantial risk that the person to be arrested will cause death or serious bodily harm if their apprehension is delayed.

(4) The deputy believes that the force used creates no substantial risk of injury to innocent persons.

c) A fleeing felon shall not be presumed to pose an immediate threat of death or serious bodily injury if apprehension is delayed. The threat shall exist based on additional and separate articulable facts and circumstances that raise the level of threat to imminent danger.

J. Warning Shots: A deputy shall not use a firearm to fire a warning shot.

K. Moving Vehicle: Deputies shall not discharge a firearm at or from a moving vehicle except as the ultimate measure of self-defense or defense of another.

L. Shots to Destroy Animals: Deputies may use deadly force on an animal to protect themselves or others from death or serious bodily harm.

1. Deputies may destroy injured animals after all other available means to aid the animal have been exhausted (See also P-3210 Patrol Shotgun). Should it become necessary to destroy an animal, the deputy shall:

   a) Ensure that the method used to destroy the animal will not result in danger to people or property.
   b) Request permission from his or her shift supervisor.
   c) Arrange for disposal of the animal carcass.
   d) Have Communications note in the incident notes that the animal was destroyed.
   e) Complete a Destroyed Animal Form.

M. Drawing or Exhibiting a Firearm or Authorized Weapon: Deputies shall not remove any authorized weapon from its holster or carrying case unless it is to be used in a tactical situation or for training purposes.

N. Review of Policy:

1. G-6100 Use of Force, G-6110 Use of Force Reporting Requirements and G-6120 Use of Force Resulting in Death or Serious Bodily Injury policies shall be reviewed yearly.

2. Each sworn deputy and Juvenile Justice Center (JJC) employee shall read and review the use of force policies and document such by initialing a sign-off sheet used by the Policy Administrator.

3. The Policy Administrator shall maintain a file of all sign-off review forms.

4. The command staff shall review, update, and make necessary changes to the use of force policies on an annual basis.